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Order QR

IN THE HIGH COURT OF JUDICATURE AT MADRAS

**DATED: 23-10-2026**

CORAM

**THE HON'BLE MR.JUSTICE N.RAMESH**

**CRL OP No. 30825 of 2026**

*CNR: {HCMA012562962026}*

M.Ashokan Michael
S/o Michael,
Lurthupuram,
B Palllipatti,
Dharmapuri District.

Case QR

..Petitioner(s)

Vs

The State Rep by The Inspector of Police
Bommidi Police Station,
Dharmapuri District.
Crime No.187 of 2026.

..Respondent(s)

**PRAYER :** Criminal Original Petition filed under Section 483 of Bharatiya Nagarik Suraksha Sanhita, 2023, to enlarge the petitioner on bail pending investigation in Crime No.187 of 2026 on the file of the Respondent Police.

For Petitioner(s): Mr.Vigneshwaran.C

For Respondent(s): Mr.M.M.I.KHALEEL
GOVERNMENT ADVOCATE (CRL.SIDE)

**ORDER**

The petitioner, who was arrested and remanded to judicial custody on 11.10.2026 for the alleged offence under Sections 4(1)(c), 4(1-A)(ii) of TNP Amendment Act, in Crime No.187 of 2026 on the file of the respondent police, seeks bail.



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2.The case of the prosecution is that the petitioner was found in illegal possession of thirty (30) bottles of Government liquor, each containing 180 ml. On seeing the police party, the petitioner attempted to flee from the scene of occurrence and he was arrested and remanded to judicial custody on 11.10.2026. Hence the case.

3. The learned counsel appearing for the petitioner submitted that the petitioner is innocent and he has been falsely implicated in the present case and that he has not committed any offence as alleged by the prosecution. He further submitted that the petitioner is ready to abide by any stringent conditions that may be imposed by this Court. Hence, he prays for grant of bail to the Petitioner.

4. Per contra, the learned Government Advocate (Criminal Side) appearing for the Respondent Police reiterated the prosecution case and submitted that the petitioner has been incarcerated since 11.10.2026 and that the petitioner has no previous cases pending against him. Hence, he opposed the grant of bail to the Petitioner.

5. I have given my anxious consideration to either side submissions and perused the materials available on record.



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6. Considering the submissions made by the learned counsel on both sides, this Court is of the view that though the petitioner was found in possession of thirty liquor bottles, there are no previous cases pending against him. Further, taking into account that the petitioner has been in judicial custody since 11.10.2026, this Court is inclined to enlarge the petitioner on bail, subject to certain conditions.

7. Accordingly, the petitioner is ordered to be released on bail on his executing a bond for a sum of **Rs.25,000/- (Rupees Twenty Five Thousand only)** with **two sureties each**, for a like sum to the satisfaction of the **learned Judicial Magistrate Court, Pappireddipatti,** and on further conditions that:

[a] the sureties shall affix their photographs and Left Thumb Impression in the Application for Surety ship [Judicial Form No.46 annexed to 'The Criminal Rules of Practice, 2019']. The learned Magistrate shall obtain a copy of any one of the identity proofs to ensure their identity;

**[b] the petitioner shall report before the respondent police daily at 10.30 a.m., until further orders;**

[c] the petitioner shall not abscond either during investigation or trial;

[d] the petitioner shall not tamper with the evidence or witness either during investigation or trial;

[e] On breach of any of the aforementioned conditions, the learned Magistrate/Trial Court is entitled to pass appropriate orders against the petitioner in acc with law as if



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the aforementioned conditions have been imposed and the petitioner released on bail by the learned Magistrate/Trial Court himself as laid down by the Hon'ble Supreme Court in **P.K.Shaji vs. State of Kerala [(2005)13 SCC 283];**

[f] If the accused thereafter absconds, a fresh FIR can be registered under Section 269 of B.N.S.

**23-10-2026**

DRL

**Note:**

1. Registry is directed to forthwith upload this order in the Official Website of this Court.

2. All concerned to act on this order being uploaded in Official Website of this Court without insisting on certified hard copies. To be noted, this order when uploaded in the official website of this Court will be watermarked and will also have a QR code.

To

1.The Judicial Magistrate Court,
Pappireddipatti.

2. The Inspector of Police
Bommidi Police Station,
Dharmapuri District.

3.The Superintendent,
District Jail, Dharmapuri.

4.The Public Prosecutor,
High Court, Madras.



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**N.RAMESH, J.**

**DRL**

**CRL OP No. 30825 of 2026**

**23-10-2026**



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